

Analysis

“Section 128.7 provides a trial court with the discretionary authority to impose sanctions when a party files a pleading that is factually or legally frivolous.” (*Peake v. Underwood* (2014) 2277 Cal.App.4th 428, 432.)

The Court, in overruling Defendants’ demurrer and denying their motion to strike, has already determined that the Complaint in this matter is not factually nor legally frivolous. The Defendants did not contest that determination – and that decision became the Order of the Court on July 22. Accordingly, Defendants’ motion for sanctions must fail.

In Opposition, Plaintiff argues that he should be awarded sanctions for opposing the motion. The Code states: “If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney’s fees incurred in presenting or opposing the motion.” The Court finds that sanctions against Defendants are not warranted under the circumstances of this case.

Conclusion

Defendants’ Motion for Sanctions is **denied**.

13. 9:00 AM CASE NUMBER: C25-03530

CASE NAME: JOHN RUBIO VS. SUSANNE KIM

HEARING ON DEMURRER TO: COMPLAINT

FILED BY:

TENTATIVE RULING:

This hearing was vacated.

14. 9:00 AM CASE NUMBER: C26-00119

CASE NAME: FRANK YOUNGMAN, IV VS. DAVID TU

***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**

FILED RE: MICHAEL R. WILLATS

FILED BY: ENCORE GROUP (USA) LLC, A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

The Court has reviewed the Application and it is **approved**.

15. 9:00 AM CASE NUMBER: C26-01170

CASE NAME: JOLENE SOLIMAN VS. FCA US LLC

***HEARING ON MOTION IN RE: COMPEL INITIAL DISCLOSURES**

FILED BY: SOLIMAN, JOLENE

TENTATIVE RULING:

Plaintiff Jolene Soliman seeks to compel Defendant FCA US LLC to provide complete initial disclosures. Defendant opposed the Motion, stating that it provided all initial disclosures, absent the ones for